



Registration of a Charge

Company Name: **ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED**

Company Number: **07160664**



XDHVX45L

Received for filing in Electronic Format on the: **13/12/2024**

Details of Charge

Date of creation: **10/12/2024**

Charge code: **0716 0664 0009**

Persons entitled: **GLAS TRUST CORPORATION LIMITED (AS SECURITY AGENT)**

Brief description:

Contains fixed charge(s).

Authentication of Form

This form was authorised by: **a person with an interest in the registration of the charge.**

Authentication of Instrument

Certification statement: **I CERTIFY THAT SAVE FOR MATERIAL REDACTED PURSUANT TO S.859G OF THE COMPANIES ACT 2006 THE ELECTRONIC COPY INSTRUMENT DELIVERED AS PART OF THIS APPLICATION FOR REGISTRATION IS A CORRECT COPY OF THE ORIGINAL INSTRUMENT.**

Certified by: **MILBANK LLP**



CERTIFICATE OF THE REGISTRATION OF A CHARGE

Company number: 7160664

Charge code: 0716 0664 0009

The Registrar of Companies for England and Wales hereby certifies that a charge dated 10th December 2024 and created by ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 13th December 2024 .

Given at Companies House, Cardiff on 19th December 2024

The above information was communicated by electronic means and authenticated by the Registrar of Companies under section 1115 of the Companies Act 2006



Companies House



**THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES**

PLEDGE OF SECURITIES ACCOUNT AGREEMENT

RELATING TO THE FINANCIAL SECURITIES HELD IN
ALPHA FINANCIAL MARKETS CONSULTING

ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED
as Pledgor

and

GLAS TRUST CORPORATION LIMITED
as Security Agent

10 DECEMBER 2024

CONTENTS

Clause	Page
1. DEFINITIONS AND INTERPRETATION	5
1.1 Definitions	5
1.2 Interpretation	8
1.3 Security Agent	8
1.4 Excluded Assets	9
1.5 Limited Recourse	9
2. PLEDGE.....	9
3. SCOPE OF THE PLEDGE.....	10
4. OPERATION OF THE SPECIAL BANK ACCOUNT	10
5. REPRESENTATIONS.....	11
6. UNDERTAKINGS	11
7. ENFORCEMENT OF THE PLEDGE	12
8. COSTS	13
9. TERM & RELEASE.....	13
10. NOTICES.....	13
11. MISCELLANEOUS	14
11.1 Exercise of rights	14
11.2 Invalidity of a provision	14
11.3 Obligations irrevocable	14
12. GOVERNING LAW- JURISDICTION	14
12.1 Governing law	14
12.2 Jurisdiction	14

SCHEDULE 1. STATEMENT OF PLEDGE OVER FINANCIAL SECURITIES ACCOUNT	15
SCHEDULE 2. CERTIFICATE OF PLEDGE OVER FINANCIAL SECURITIES ACCOUNT	20
SCHEDULE 3. CERTIFICATE OF PLEDGE (SPECIAL BANK ACCOUNT)	21
SCHEDULE 4. FORM OF NOTICE OF THE OCCURRENCE OF A DECLARED DEFAULT TO THE SPECIAL BANK ACCOUNT HOLDER	22

PLEDGE OF SECURITIES ACCOUNT AGREEMENT dated 10 December 2024

BETWEEN THE UNDERSIGNED:

- (1) **ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED**, a private limited company incorporated under the laws of England and Wales, whose registered office is located at 60 Gresham Street, London, EC2V 7BB, and registered under company number 07160664 (hereinafter the "**Pledgor**"), and
- (2) **GLAS TRUST CORPORATION LIMITED**, a private limited company incorporated under the laws of England and Wales, whose registered office is located at 55 Ludgate Hill, London, EC4M 7JU, and registered under company number 07927175, acting as Security Agent in accordance with the provisions of clause 19.2 (*Parallel Debt (Covenant to pay the Security Agent)*) of the Intercreditor Agreement (as defined below) (hereinafter the "**Security Agent**").

WHEREAS:

- (A) Pursuant to an English law senior facilities agreement dated 16 August 2024 entered into between, *inter alios*, (i) Actium Midco 2 (UK) Limited as Parent and Original Guarantor, (ii) Actium Midco 3 (UK) Limited as Company and Original Guarantor, (iii) Actium Bidco (UK) Limited as UK Bidco and Original Guarantor, (iv) Actium Bidco (US), Ltd. as US Bidco and Original Guarantor, (v) HSBC UK Bank Plc and Lloyds Bank Plc as Revolving Facility Arrangers, (vi) the financial institutions listed therein as Original Lenders, (vii) GLAS USA LLC as Agent and (viii) GLAS Trust Corporation Limited as Security Agent, as amended and/or restated from time to time (each as defined therein) (the "**Senior Facilities Agreement**"), the Lenders have agreed to make the following facilities available:
- (i) a term loan facility in an aggregate amount equal to £230,000,000;
 - (ii) a multicurrency term loan facility in an aggregate amount equal to £50,000,000; and
 - (iii) a multicurrency revolving credit facility in an aggregate amount equal to £50,000,000.
- (B) Pursuant to an English law intercreditor agreement dated 16 August 2024 entered into between, *inter alios*, (i) Actium Midco 3 (UK) Limited as Company, (ii) Actium Midco 2 (UK) Limited as Parent, (iii) Actium Midco 1 (UK) Limited as Midco and the Original Subordinated Creditor, (iv) Actium Bidco (UK) Limited as UK Bidco, (v) Actium Bidco (US), Ltd. as US Bidco, (vi) the companies listed therein as Original Debtors, (vii) the companies listed therein as Original Intra-Group Lenders, (viii) the financial institutions listed therein as Original Super Senior Lenders, (ix) the financial institutions listed therein as Original Senior Lenders, (x) the financial institutions listed therein as Original Super Senior Arrangers, (xi) GLAS USA LLC as Agent and (xii) GLAS Trust Corporation Limited as Security Agent as amended and/or restated from time to time (each as defined therein) (the "**Intercreditor Agreement**"), the parties thereto have, among others, agreed to organise their relationship in connection with the Debt Documents (as defined therein).
- (C) Pursuant to an accession deed dated 10 December 2024, the Company has acceded to the Senior Facilities Agreement as Additional Guarantor (as defined under the Senior Facilities Agreement) and to the Intercreditor Agreement as Debtor and Intra Group Lender (as defined under the Intercreditor Agreement) (the "**Obligor Accession Deed**").
- (D) Pursuant to an accession deed dated 10 December 2024, the Pledgor has acceded to the Intercreditor Agreement as Third Party Security Provider (as defined under the Intercreditor Agreement) (the "**Third Party Accession Deed**", and together with the Obligor Accession Deed, the "**Accession Deeds**").
- (E) In the context of its accession to the Intercreditor Agreement and as security for the due performance of the Secured Obligations (as defined hereafter), the Pledgor as Third Party Security Provider has undertaken to grant a first ranking pledge over the Pledged Account (as defined below), in favour of the Security Agent as beneficiary of the parallel debt in accordance with the provisions of clause 19.2 (*Parallel Debt (Covenant to pay the Security Agent)*) of the Intercreditor Agreement, in accordance with the terms of this agreement (the "**Agreement**").

IT IS AGREED AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

Except where otherwise expressly provided to the contrary, all the capitalised terms and expressions in this Agreement (and in the recitals) shall have the same meaning as in the Accession Deeds, the Senior Facilities Agreement and the Intercreditor Agreement (as applicable) and the following terms and expressions shall have the meaning set forth below:

"Acceptable Expert" means any of the following: (i) Ernst & Young, (ii) Deloitte & Touche Tohmatsu, (iii) KPMG, or (iv) PriceWaterhouseCoopers.

"Account Holder" means the Company in its capacity as account holder (*teneur de compte*) of the Pledged Account opened in the name of the Pledgor in its books.

"Cash Proceeds" (*fruits et produits*) means any dividends, interests and other proceeds or income attached or deriving from the Financial Securities (including interim dividends, distributions of reserves and other cash distributions) and paid or payable in respect of the Financial Securities.

"Certificate of Pledge over Financial Securities Account" (*Attestation de nantissement de compte-titres*) means the certificate of pledge relating to the Financial Securities Account, in the form set out in Schedule 2 (*Certificate of Pledge over Financial Securities Account*).

"Certificate of Pledge (Special Bank Account)" (*Attestation de nantissement de compte fruits et produits*) means the certificate of pledge relating to the Special Bank Account, in the form set out in Schedule 3 (*Certificate of Pledge (Special Bank Account)*).

"Certificates of Pledge" means together the Certificate of Pledge over Financial Securities Account and the Certificate of Pledge (Special Bank Account).

"Company" means Alpha Financial Markets Consulting, a *société par actions simplifiée* incorporated under the laws of France, whose registered office is located at 6 Square de l'Opéra-Louis Jouvet, 75009 Paris, registered with the trade and commerce register (*Registre du Commerce et des Sociétés*) of Paris under number 523 666 063.

"Declared Default" has the meaning given to such term in the Senior Facilities Agreement.

"Excluded Asset" means:

- (a) any assets of the Pledgor if the granting of Security on or over such asset would, in the reasonable opinion of the Pledgor:
 - (i) not be within the legal capacity of the Pledgor;
 - (ii) be impossible or impractical to create Security over;

- (iii) conflict with the fiduciary or statutory duties of the Pledgor or the Pledgor's Affiliates' directors or other officer or employee; or
- (iv) contravene any legal or regulatory prohibition, bona fide contractual restriction or regulatory condition or result in a risk of personal, criminal or other legal liability on the part of any director (or officer or employee) of any member of the Group,

provided that the Pledgor shall use reasonable endeavours (but without requiring the payment of money and without adverse impact on commercial relationships with third parties) to overcome any of the obstacles described in paragraphs (ii) to (iv) above to enable it to create Security on or over such asset;

- (b) any asset of the Pledgor, which is subject to contracts, leases, licences or other arrangements with a third party, if the granting of Security on or over such asset would:
 - (i) give a third party the right to terminate or otherwise amend any rights, benefits and/or obligations with respect of those assets or require any member of the Group to take any action materially adverse to the interests of the Group or any member thereof; or
 - (ii) either absolutely or conditionally be prohibited,

provided that for assets that are material in the context of the Group, and if, in the view of the Parent (acting reasonably), taking Security on or over such asset will have no adverse impact on commercial relationships with third parties or otherwise require the Group to pay money to third parties, the Pledgor shall use commercially reasonable endeavours to overcome any of the obstacles described in paragraphs (a)(i) to (a)(iv) above to enable it to create Security on or over such asset;

- (c) any shares in joint ventures or any asset owned by such joint venture vehicles;
- (d) any hedging agreements entered into by members of the Group;
- (e) any asset (A) subject to Security in favour of a third party or (B) which constitutes regulatory capital or customer cash, in each case to the extent permitted by the Debt Documents;
- (f) directly or indirectly (A) any assets of a CFC, FSHCO or a subsidiary of a CFC or a FSHCO (including any CFC or FSHCO equity interests held directly or indirectly by a CFC or FSHCO); and (B) any pledge or other security interest in excess of 65% of the voting equity interests of a CFC or FSHCO; and
- (g) any asset of the Pledgor if the granting or creation of Security on or over such asset would restrict the ability of the Pledgor to conduct its day-to-day operations and business in the ordinary course as otherwise permitted or not prohibited by the Debt Documents (including by way of imposing any restriction or practical limitation on the ability of the Group to deal with secured assets or enter into (or amend, waive, terminate or allow to lapse any rights, benefits or obligations) leasing, vendor financing, maintenance, insurance or similar or equivalent arrangements otherwise permitted by the terms of the Debt Documents) and any requirement under this Security Agreement to seek consent of any person or take or not take any other action shall be subject to this paragraph (g).

"Finance Documents" has the meaning given to the term "Finance Document(s)" in the Senior Facilities Agreement.

"Financial Securities" ("*titres financiers*" within the meaning of Article L. 211-1-II of the French Monetary and Financial Code (*Code monétaire et financier*)) means the financial security comprising:

- (i) on the Signature Date, all the ordinary shares issued by the Company and held by the Pledgor, representing on the Signature Date 100% of the share capital and voting rights held by the Pledgor;
- (ii) all financial securities which may at any time be substituted for or added to them in any way (including options, preferential subscription rights and other rights and including following a merger, distribution of shares or reduction of capital followed by an increase of capital); and
- (iii) any other financial securities issued at any time by the Company and held by the Pledgor.

"Financial Securities Account" means the financial securities account (*compte-titres*) as identified in the Statement of Pledge, opened in the Pledgor's name in the share transfer register and shareholders' accounts of the Account Holder and to which all Financial Securities held from time to time by the Pledgor will be credited.

"Notice" means a notice in the form set out in Schedule 4 (*Form of Notice of the occurrence of a Declared Default to the Special Bank Account Holder*) served by the Security Agent on the Special Bank Account Holder in accordance with clause 4(b) (*Operation of the Special Bank Account*).

"Pledge" means the first ranking pledge granted over the Pledged Account in accordance with this Agreement and the Statement of Pledge.

"Pledged Account" (*compte nanti*) means together the Financial Securities Account and the Special Bank Account.

"Secured Debt Document" means each "Debt Document" under and as defined in the Intercreditor Agreement.

"Secured Obligations" means the "*Obligations Garanties*" as defined and fully described in Schedule 1 (*Statement of Pledge over Financial Securities Account*), it being specified that the Pledgor grants the Pledge in accordance with the provisions of article 2325 of the Civil Code. Consequently, the Security Agent may exercise its rights under this Agreement with respect to the Pledged Accounts only, without benefiting from any personal recourse against the Pledgor and subject to Clause 1.5 (*Limited Recourse*).

"Security" means a mortgage, pledge, lien or other agreement or undertaking securing any obligation or person, or any other agreement with similar effect by virtue of any applicable law.

"Security Period" means the period beginning on the Signature Date and ending on the day of complete and final repayment of the Secured Obligations (in accordance with clause 1.2(i) of the Intercreditor Agreement) or any earlier date on which the Pledgor is fully released of all its obligations under the Secured Obligations.

"Signature Date" means the signature date of this Agreement.

"Special Bank Account" (*compte fruits et produits*) means, to the extent such account is opened pursuant to the terms of Clause 6(c) of this Agreement, the special bank account referred to in the Statement of Pledge and held with the Special Bank Account Holder to which shall be credited all Cash Proceeds, as identified in the Statement of Pledge, in accordance with article L. 211-20 of the French Monetary and Financial Code (*Code monétaire et financier*).

"Special Bank Account Holder" (*teneur du compte fruits et produits*) means the bank located in France to be appointed by the Pledgor for the purpose of holding the Special Bank Account.

"Statement of Pledge" (*déclaration de nantissement de compte de titres financiers*) means the statement of pledge over financial securities account in the form set out in Schedule 1 (*Statement of Pledge over Financial Securities Account*).

1.2 Interpretation

- (a) The rules of interpretation applicable to this Agreement are the same as those set out in clause 1.2 (*Construction*) of the Intercreditor Agreement.
- (b) In this Agreement, unless a contrary intention appears, a reference to any Secured Debt Document or other agreement or instrument is to be construed as a reference to that agreement or instrument as amended or novated, or accession or retirement of the parties to these agreements but excluding any amendment or novation made contrary to any provision of any Secured Debt Document.
- (c) This Agreement is subject to the Intercreditor Agreement. In the event of any inconsistency between this Agreement and any relevant Secured Debt Document or the Intercreditor Agreement, then (to the fullest extent permitted by law) the provisions of any relevant Secured Debt Document or (as applicable) the Intercreditor Agreement shall prevail (and that, if requested to do so by (and at the cost of) the Obligors' Agent, the Security Agent will enter into such amendments, waivers or consents as are necessary to remove such conflict).
- (d) Notwithstanding anything to the contrary in this Agreement, the terms of this Agreement shall not operate so as to prohibit or restrict any transactions or other matters which are permitted under any Secured Debt Documents. The Security Agent shall enter into such documentation and/or take such other necessary action as is required by the Pledgor (acting reasonably) in order to facilitate the entry into any such transactions or other matters, including by way of executing any confirmations, consent to dealing, release or other similar or equivalent document provided that any costs and expenses incurred by the Security Agent entering into such documentation and/or taking such other action at the request of the Pledgor pursuant to this paragraph (d) shall be for the account of the Pledgor.

1.3 Security Agent

- (a) Except where the context otherwise requires, any reference in this Agreement to the Security Agent shall be a reference to the Security Agent appointed as such by the Secured Parties pursuant to clause 19 (*The Security Agent*) of the Intercreditor Agreement and acting in its name for the benefit of the Secured Parties.
- (b) The provisions set out in clause 19 (*The Security Agent*) of the Intercreditor Agreement shall govern the rights, duties, obligations and (if applicable) the terms of the replacement of the Security Agent under this Agreement.

1.4 Excluded Assets

- (a) Subject to paragraph (b) below, Excluded Assets shall not be subject to any Pledge created by or pursuant to this Agreement.
- (b) Any Pledged Account which is excluded from any Pledge created by or pursuant to this Agreement pursuant to paragraph (a) above shall, upon ceasing to be an Excluded Asset, become subject to any Pledge created by this Agreement.

1.5 Limited Recourse

- (a) Notwithstanding any other provisions of this Agreement or any other Secured Debt Document, the Security Agent and each Secured Party acknowledge that:
 - (i) the recourse of the Security Agent and Secured Parties against the Pledgor in respect of the Secured Obligations is limited to the rights of enforcement and recovery against the Charged Property in respect of which it has granted Transaction Security; and
 - (ii) the liabilities and obligations of the Pledgor under this Agreement and the other Secured Debt Documents are limited to, and may only be discharged from, any Recoveries from the Charged Property in respect of which it has granted Transaction Security (**Third Party Security Recovery Proceeds**) and the liabilities of the Pledgor shall be fully extinguished upon such relevant discharge.
- (b) The Security Agent and Secured Parties:
 - (i) do not have any recourse to any assets of the Pledgor other than the Charged Property in respect of which it has granted Transaction Security;
 - (ii) must not seek to recover from the Pledgor in any manner any shortfall between the amount of the Third Party Security Recovery Proceeds and the Secured Obligations; and
 - (iii) must not sue or commence, join or bring any action or proceeding against the Pledgor or apply to have the Pledgor wound-up or made subject to insolvency proceedings solely as a result of any shortfall referred to in sub-paragraph (ii) above.

2. PLEDGE

- (a) Subject to Clause 1.4 (*Excluded Assets*) and Clause 1.5 (*Limited Recourse*), as security for the full, due and timely performance of the Secured Obligations, the Pledgor in accordance with article 2325 of the French civil code (*Code civil*) hereby grants, as from the Signature Date, a first ranking pledge over the Financial Securities Account and the Special Bank Account, in favour of the Security Agent, who accepts such pledge, in accordance with article L. 211-20 of the French Monetary and Financial Code (*Code monétaire et financier*).
- (b) For that purpose, the Pledgor will deliver on the Signature Date to the Security Agent, a pdf signed copy of the Statement of Pledge executed by the Pledgor.

- (c) The Pledge created by this Agreement shall be in addition to any other Security held by the Security Agent in respect of the Secured Obligations or any of them and shall not in any way be prejudiced or affected by, and shall be without prejudice to, the said Security.
- (d) The Pledgor waives any right it may have of first requiring the Security Agent to proceed or enforce any other Security against any other person before exercising the rights constituted under this Agreement and any right that it may have to require the Security Agent to enforce its rights under this Agreement in a specific order.

3. SCOPE OF THE PLEDGE

- (a) In accordance with article L. 211-20 of the French Monetary and Financial Code (*Code monétaire et financier*), all Financial Securities standing to the credit of the Financial Securities Account and the Cash Proceeds, fall within the scope of the Pledge. The Financial Securities and amounts in cash at any time standing to the credit of the Financial Securities Account and to the credit of, following the opening of such account pursuant to Clause 6(c) of this Agreement, the Special Bank Account, will be subject to the same conditions as the Financial Securities initially standing to the credit of the Financial Securities Account and will be deemed to have been transferred to such account on the date of signature of the Statement of Pledge.
- (b) As soon as reasonably practicable following a Declared Default, the Cash Proceeds registered on the Financial Securities Account will be credited to the Special Bank Account. The Special Bank Account will be deemed to form part of the Pledged Account as from the date of signature of the Statement of Pledge, in accordance with article L. 211-20 III of the French Monetary and Financial Code (*Code monétaire et financier*).
- (c) The Security Agent will always benefit from a right of retention over the Financial Securities and all sums in cash standing to the credit of the Pledged Account, in accordance with article L. 211-20 IV of the French Monetary and Financial Code (*Code monétaire et financier*).

4. OPERATION OF THE SPECIAL BANK ACCOUNT

- (a) To the extent a Special Bank Account is opened pursuant to Clause 6(c) of this Agreement, the Pledgor is authorised to freely withdraw and dispose of any cash amounts credited to the Special Bank Account, as long as the Special Bank Account is not blocked under the conditions set out hereafter and subject to the terms and conditions of the Intercreditor Agreement and the other Secured Debt Documents.
- (b) The Security Agent may serve a Notice on the Special Bank Holder with a copy to the Pledgor (for information purposes) at any time after the occurrence of a Declared Default which is continuing and upon receipt of such a Notice by the Special Bank Account Holder with copy to the Pledgor, the Special Bank Account will be blocked by the Special Bank Account Holder. After the Special Bank Account has been blocked, any debit operation other than the recording on the Special Bank Account of operations initiated before receipt of the notice of blocking will be prohibited and the Special Bank Account Holder will register only credit entries in the Special Bank Account. The actions contemplated in this paragraph (b) shall not result in the closure of the Special Bank Account.

5. REPRESENTATIONS

The Pledgor represents and warrants on the Signature Date to the Security Agent that it is the sole and valid owner of the Financial Securities Account and it has valid title and is the registered owner of the Financial Securities.

6. UNDERTAKINGS

Without prejudice to the Pledgor's undertakings under the Secured Debt Documents, but subject to the provisions of the Intercreditor Agreement and save as otherwise permitted under or not prohibited by the Secured Debt Documents, the Pledgor gives the following undertakings on the Signature Date and throughout the Security Period:

- (a) to provide the Account Holder with a copy of this Agreement and the Statement of Pledge;
- (b) to cause and procure that the Account Holder shall, as soon as reasonably practicable from the date of this Agreement:
 - (i) deliver a Certificate of Pledge over Financial Securities Account;
 - (ii) ensure that the Pledge is duly registered on the share transfer register and shareholders' accounts of the Company, by adding the following statement duly completed:

*"Affectation en nantissement de premier rang aux termes d'une déclaration de nantissement émise par Alpha Financial Markets Consulting Group Limited en date du 10 décembre 2024 (la « **Déclaration de Nantissement** ») en garantie du paiement et du remboursement de toutes sommes dues, de quelque nature que ce soit, à l'Agent des Sûretés au titre des Obligations Garanties conformément à l'article 2325 du Code civil (tels que ces termes sont définis dans la Déclaration de Nantissement)";* and
 - (iii) deliver a duly certified copy by the authorised representative of the Account Holder of the share transfer register and the shareholders' accounts of the Company registering the Pledge;
- (c) as soon as reasonably practicable following the occurrence of a Declared Default which is continuing:
 - (i) to open a Special Bank Account in the name of the Pledgor to be held with the Special Bank Account Holder;
 - (ii) to provide the Special Bank Account Holder with a copy of this Agreement and the Statement of Pledge;
 - (iii) to cause and procure that the Special Bank Account Holder shall deliver a Certificate of Pledge (Special Bank Account); and
 - (iv) to instruct the Company to transfer any Cash Proceeds directly on the Special Bank Account.

7. ENFORCEMENT OF THE PLEDGE

- (a) At any time after the occurrence of a Declared Default which is continuing, the Security Agent may upon service of a notice of enforcement by registered letter with acknowledgement of receipt to the Pledgor and without the need for any formality, exercise all rights, actions and liens conferred by the law on the Security Agent, for the purposes of enforcing the Pledge.
- (b) Without prejudice to the rights of the Security Agent to enforce the Pledge by any other means provided for under the law, the Security Agent, at any time after five (5) Business Days after notice of enforcement has been served by the Security Agent on the Pledgor and the Account Holder, shall be entitled in its absolute discretion in accordance with article L. 211-20 V of the French Monetary and Financial Code (*Code monétaire et financier*) and article 2348 of the French Civil Code (*Code civil*) to foreclose title to and become the full owner of any or all of:
 - (i) the Financial Securities; and
 - (ii) the sums standing to the credit of the Special Bank Account.
- (c) The transfer in full ownership of the Financial Securities and of the sums standing to the credit of the Special Bank Account in accordance with article L. 211-20 V of the French Monetary and Financial Code (*Code monétaire et financier*) and article 2348 of the French Civil Code (*Code civil*) will be effective upon the expiry of the three (3) Business Days period following the receipt of the aforementioned notice and without the need for any other formality or prior court order. The Pledgor will promptly execute and/or deliver to the Security Agent such documents and otherwise do such formalities that will be required for this allocation purpose. The Security Agent will then be authorised to dispose freely of such assets.
- (d) In accordance with article 2348 of the French Civil Code (*Code civil*), the Security Agent and the Pledgor hereby agree that they will, as soon as practicable upon transfer in full ownership entrust, the mandate of expert in charge of valuing the Financial Securities at the date of the transfer in full ownership to any of the Acceptable Experts, who shall then accept his/her appointment within an eight (8) days period. If none of the Acceptable Experts are able to accept their mission for any reason whatsoever, the expert will be appointed by the President of the *tribunal de commerce* of Paris at the request of either of the Pledgor and/or the Security Agent from among the experts to the *Cour d'appel* of Paris listed under the "*Economie et Finance*" (Economy and Finance) sector whose specialisation is "*Evaluation de droits sociaux - fusions - scissions et apports*" (Valuation of company rights -mergers- demergers and contributions), "*comptabilité et finance*"(accounting and finance) sub-section. Within thirty (30) calendar days from his/her appointment date or date of acceptance of his/her appointment (as the case may be), the expert will provide the Security Agent and the Pledgor with a copy of his/her report setting forth his/her determination of the value of the Financial Securities on the date of their transfer in full ownership (the **Enforcement Value**) and the assessment methods used for the purpose of such determination. The Pledgor and the Security Agent will leave the determination of the assessment method and the valuation of the Financial Securities to the expert, whose valuation will be final and without possibility of appeal by the Pledgor and/or the Security Agent, except in case of obvious error (*erreur grossière*).

- (e) The Pledgor will cooperate with the Security Agent with regard to any steps and the provision of any information or document which may be required for the appointment of the expert and the performance of its mission and the transfer of the Financial Securities in full ownership in accordance with the provisions of this paragraph.
- (f) Irrespective of the method of enforcement of the Pledge, any proceeds therefrom will be used to repay the Secured Obligations in accordance with the terms of the Intercreditor Agreement.
- (g) Any excess of the sum of the Enforcement Value and the credit of the Special Bank Account held by the Security Agent as at the same date over the then outstanding amount of the Secured Obligations shall be returned to the Pledgor.

8. COSTS

Without limiting clause 23 (*Costs and Expenses*) of the Senior Facilities Agreement or clause 22 (*Costs and Expenses*) of the Intercreditor Agreement (and without prejudice to any other provision of any Secured Debt Document relating to the payment of costs and expenses), all costs (including, without limitation, legal costs) incurred in connection with the creation, perfection, release or, as the case may be, enforcement of the Pledge will be borne by the Pledgor in accordance with the provisions of the Senior Facilities Agreement and the Intercreditor Agreement.

9. TERM & RELEASE

- (a) This Agreement shall enter into force on the Signature Date and will remain in force during the Security Period. The parties acknowledge that the Pledge is a continuing security and will extend to the ultimate balance of the Secured Obligations, regardless of any intermediate payment or discharge in whole or in part.
- (b) When the Secured Obligations have been irrevocably and unconditionally paid and discharged in full (in accordance with clause 1.2(i) (*Construction*) of the Intercreditor Agreement) or when expressly contemplated in the Intercreditor Agreement or the Secured Debt Documents, the Security Agent will release the Pledge as soon as practicable after the Pledgor's request and at the Pledgor's cost, by executing and delivering any such documents as may be reasonably required by the Pledgor, including the delivery of registered letter to be given to the Pledgor for the purposes of release in each case without recourse to, or any representation or warranty by, the Security Agent or its nominees.

10. NOTICES

- (a) Any communication in connection with this Agreement will be made in accordance with the Third Party Accession Deed, clause 38 (*Notices*) of the Senior Facilities Agreement and clause 25 (*Notices*) of the Intercreditor Agreement (as applicable).
- (b) Any notice, demand or communication to be served and/or any document to be delivered to the Company under this Agreement will be delivered to:

John Paton
Alpha Financial Markets Consulting
60 Gresham Street, London, EC2V 7BB
Email : [REDACTED]

11. MISCELLANEOUS

11.1 Exercise of rights

- (a) All the rights and remedies granted under this Agreement are cumulative and not exclusive of any rights or remedies provided by law or any other Secured Debt Document.
- (b) No failure to exercise, no partial exercise and no delay in the exercise by either of the parties to this Agreement of any right hereunder shall operate as a waiver of such right and shall not preclude the relevant party from further exercise of such right in the future or, in general, from the exercise of any other right or remedy provided by law.

11.2 Invalidity of a provision

If at any time any provision of this Agreement is or becomes illegal, invalid or unenforceable, the legality, validity and enforceability of the remaining provisions of this Agreement shall not be affected.

11.3 Obligations irrevocable

This Agreement shall remain in full force to the extent permitted by applicable legislation, notwithstanding:

- (a) any renewal, or extension of the term of any of the Secured Debt Documents and/or the Secured Obligations;
- (b) any novation or other modification of the Secured Debt Documents and/or the Secured Obligations; and
- (c) any nullity, invalidity, illegality or unenforceability of all or part of the provisions of any Secured Debt Documents and/or Secured Obligations and/or of any other security interest or document mentioned in or relating to the Secured Debt Documents and their annexes.

12. GOVERNING LAW- JURISDICTION

12.1 Governing law

This Agreement is governed by French law.

12.2 Jurisdiction

The Commercial Court of Paris has exclusive jurisdiction to settle any dispute arising out of or in connection with this Agreement (including, without limitation, a dispute regarding the existence, validity or termination of this Agreement).

Signed in 2 (two) original copies on the Signature Pages hereafter on the date above written.

SCHEDULE 1. STATEMENT OF PLEDGE OVER FINANCIAL SECURITIES ACCOUNT

Déclaration de Nantissement de Compte de Titres Financiers

La présente déclaration est soumise aux dispositions de l'article L. 211-20 du Code monétaire et financier.

Le Constituant :

CONSTITUANT (le "Constituant") :

<u>Dénomination sociale</u> :	ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED
<u>Forme</u> :	Société à responsabilité limitée (<i>private limited company</i>)
<u>Siège social</u> :	60 Gresham Street, Londres, EC2V 7BB
<u>Numéro d'immatriculation</u> :	07160664
<u>Représentée par</u> :	John Paton

Constitue en nantissement au profit de :

CRÉANCIER NANTI :

GLAS TRUST CORPORATION LIMITED, une société à responsabilité limitée (*private limited company*), dont le siège social est situé au 55 Ludgate Hill, Londres, EC4M 7JU, enregistrée en Angleterre et au Pays de Galles sous le numéro de société 07927175, agissant en qualité d'agent des sûretés bénéficiaire de la dette parallèle (*parallel debt*) conformément à l'article 19.2 (*Parallel Debt (Covenant to pay the Security Agent)*) de la Convention Intercréanciers (telle que définie ci-après), y compris ses successeurs, cessionnaires, ayants cause et ayants-droits (l'"**Agent des Sûretés**").

En garantie du paiement des sommes dues au titre des obligations suivantes :

IDENTIFICATION DE LA CREANCE GARANTIE :

Nature: Toutes les Obligations (*Liabilities*) qui sont des obligations de paiement et toutes les autres obligations de paiement, présentes et futures à tout moment, dues, exigibles ou encourues par la Société Nantie (tel que ce terme est défini ci-après), en sa qualité de Garant (*Guarantor*) au titre des Documents de Dette Garantie (*Secured Debt Documents*) (tel que ce terme est défini dans la Convention de Nantissement (tel que ce terme est défini ci-après)) en tant que constituant pour compte de tiers (*Third Party Security Provider*), conformément à l'article 2325 du code civil et sous réserve de l'article 1.5 (*Limited Recourse*) de la Convention de Nantissement tel que reproduit ci-dessous en langue anglaise, à l'Agent des Sûretés en qualité de bénéficiaire de la dette parallèle (*parallel debt*) conformément à la clause 19.2 (*Parallel Debt (Covenant to pay the Security Agent)*) de la Convention Inter-créanciers (*Intercreditor Agreement*) en lien avec les Documents de Dette Garantie (*Secured Debt Documents*), tant réelle que conditionnelle et qu'elle soit contractée uniquement ou conjointement et en tant que constituant pour compte de tiers (*Third Party Security Provider*), sous réserve, le cas

échéant des limitations de garanties prévues à la clause 24 (*Guarantee and Indemnity*) du Contrat de Crédits Senior (*Senior Facilities Agreement*), à la clause 1.13 (*Guarantee Limitations*) de l'annexe 4 (*Hedge Counterparties' Guarantee And Indemnity*) de la Convention Inter-créanciers (*Intercreditor Agreement*) et la clause 5 (*Guarantee Limitation – French Guarantors*) de l'Acte d'Adhésion Garant (*Obligor Accession Deed*).

Article 1.5 (*Limited Recourses*) de la Convention de Nantissement :

« **1.5 Limited Recourse**

- (a) Notwithstanding any other provisions of this Agreement or any other Secured Debt Document, the Security Agent and each Secured Party acknowledge that:
 - (i) the recourse of the Security Agent and Secured Parties against the Pledgor in respect of the Secured Obligations is limited to the rights of enforcement and recovery against the Charged Property in respect of which it has granted Transaction Security; and
 - (ii) the liabilities and obligations of the Pledgor under this Agreement and the other Secured Debt Documents are limited to, and may only be discharged from, any Recoveries from the Charged Property in respect of which it has granted Transaction Security (**Third Party Security Recovery Proceeds**) and the liabilities of the Pledgor shall be fully extinguished upon such relevant discharge.
- (b) The Security Agent and Secured Parties:
 - (i) do not have any recourse to any assets of the Pledgor other than the Charged Property in respect of which it has granted Transaction Security;
 - (ii) must not seek to recover from the Pledgor in any manner any shortfall between the amount of the Third Party Security Recovery Proceeds and the Secured Obligations; and
 - (iii) must not sue or commence, join or bring any action or proceeding against the Pledgor or apply to have the Pledgor wound-up or made subject to insolvency proceedings solely as a result of any shortfall referred to in sub-paragraph (ii) above. »

Documents de Dette Garantie :

- 1) La convention de crédits senior en langue anglaise soumise au droit anglais intitulée "*Senior Facilities Agreement*" en date du 16 août 2024 conclue entre notamment (i) Actium Midco 2 (UK) Limited en qualité de Parent (*Parent*) et de Garant Initial (*Original Guarantor*), (ii) Actium Midco 3 (UK) Limited en qualité de Société (*Company*) et de Garant Initial (*Original Guarantor*), (iii) Actium Bidco (UK) Limited en qualité de UK Bidco (*UK Bidco*) et de Garant Initial (*Original Guarantor*), (iv) Actium Bidco (US), Ltd. en qualité de US BidCo (*US Bidco*) et de Garant Initial (*Original Guarantor*), (v) HSBC UK Bank Plc et Lloyds Bank Plc en qualité d'Arrangeurs Crédit Renouvelable (*Revolving Facility Arrangers*), (vi) les entités qui y sont listées en qualité de Prêteurs Initiaux (*Original Lenders*), (vii) GLAS USA LLC en qualité d'Agent (*Agent*) et (viii) GLAS Trust Corporation Limited en qualité d'Agent des Sûretés (*Security Agent*), telle que modifiée et/ou amendée de temps à autre (tel que chacun de ces termes y sont définis en langue anglaise) (le "**Contrat de Crédits Senior**") et aux termes de laquelle les Prêteurs Initiaux (*Original Lenders*) ont accepté de mettre à disposition :
 - (i) un crédit à terme (*Facility B*) d'un montant maximum en principal de £230.000.000 (le "**Crédit B**") ;
 - (ii) un crédit à terme multidevise (*Acquisition/Capex Facility*) d'un montant maximum en principal de £50.000.000 (le "**Crédit Acquisition/Capex**") ; et
 - (iii) un crédit renouvelable multidevise (*Revolving Facility*) d'un montant maximum en principal de £50.000.000 (le "**Crédit Renouvelable**"),ensemble, les "**Crédits**" (*Facilities*) ;
- 2) La convention inter-créanciers en langue anglaise soumise au droit anglais intitulée "*Intercreditor Agreement*" en date du 16 août 2024 conclue entre notamment, (i) Actium Midco 3 (UK) Limited en qualité de Société (*Company*), (ii) Actium Midco 2 (UK) Limited en qualité de Parent (*Parent*), (iii) Actium Midco 1 (UK) Limited en qualité de Midco (*Midco*) et de Créancier Subordonné Initial (*Original Subordinated Creditor*), (iv) Actium Bidco (UK) Limited en qualité de UK Bidco (*UK Bidco*), (v) Actium Bidco (US), Ltd. en qualité de US Bidco (*US Bidco*), (vi) les entités qui y sont listées en qualité de Débiteurs Initiaux (*Original Debtors*), (vii) les entités qui y sont listées en qualité de Prêteurs Intra-Groupe Initiaux (*Original Intra-Group Lenders*), (viii) les entités qui y sont listées en qualité de Prêteurs Super Senior Initiaux (*Original Super Senior Lenders*), (ix) les entités qui y sont listées en qualité de Prêteurs Senior Initiaux (*Original Senior Lenders*), (x) les entités qui y sont listées en qualité d'Arrangeurs Super Senior Initiaux (*Original Super Senior Arrangers*), (xi) GLAS USA LLC en qualité d'Agent (*Agent*) et (xii) GLAS Trust Corporation Limited en qualité d'Agent des Sûretés (*Security Agent*), telle que modifiée et/ou amendée de temps à autre (tel que chacun de ces termes y sont définis en langue anglaise) (la "**Convention Inter-créanciers**") ; et
- 3) Tous autres documents et conventions définis sous le terme "*Debt Documents*" dans la Convention Inter-Créanciers (ensemble avec le Contrat de Crédits Senior, les "**Documents de Dette Garantie**").

Montants indicatifs : Les montants dus au titre de l'engagement de dette parallèle (*parallel debt*) stipulé à l'article 19.2 (*Parallel Debt (Covenant to pay the Security Agent)*) de la Convention Inter-Créanciers (*Intercreditor Agreement*) en lien avec les Documents de Dette Garantie (*Secured Debt Documents*) :

au titre du Contrat de Crédit Senior (*Senior Facilities Agreement*) :

(i) £230.000.000 maximum en principal, majoré des intérêts, intérêts de retard, frais, et dépenses, honoraires, commissions et accessoires au titre du Crédit B (*Facility B*) ;

(ii) £50.000.000 maximum en principal, majoré des intérêts, intérêts de retard, frais, et dépenses, honoraires, commissions et accessoires au titre du Crédit Acquisition/Capex (*Acquisition/Capex Facility*) ; et

(ii) £50.000.000 maximum en principal, majoré des intérêts, intérêts de retard, frais, et dépenses, honoraires, commissions et accessoires au titre Crédit Renouvelable (*Revolving Facility*)

Les Crédits (*Facilities*) portent intérêts conformément aux stipulations du Contrat de Crédit Senior (*Senior Facilities Agreement*).

Les intérêts de retard sont calculés conformément aux stipulations du Contrat de Crédit Senior (*Senior Facilities Agreement*).

Le compte nanti (le "Compte Nanti") comprenant :

Le compte-titres suivant :

COMPTE-TITRES (le "Compte-Titres") :

<u>N°</u> :	1 bis
<u>Teneur du Compte-Titres</u> :	ALPHA FINANCIAL MARKETS CONSULTING
<u>Adresse</u> :	6 Square de l'Opéra-Louis Jouvét, 75009 Paris
<u>RCS</u> :	523 666 063 RCS Paris

Sur lequel sont inscrits, au jour de la signature de la présente déclaration de nantissement de compte de titres financiers, les titres suivants :

TITRES INSCRITS AU CREDIT DU COMPTE-TITRES (les "Titres") :

Cent cinquante mille (150.000) actions ordinaires d'une valeur nominale de un euros (1€) chacune émises par Alpha Financial Markets Consulting une société par actions simplifiée dont le siège social est situé 6 Square de l'Opéra-Louis Jouvét, 75009 Paris et immatriculée au Registre du Commerce et des Sociétés de Paris sous le numéro 523 666 063 (la **Société Nantie**).

Et le compte fruits et produits suivant :

Le compte bancaire qui sera ouvert dans les conditions prévues au paragraphe 6(c) de la Convention de Nantissement (tel que ce terme est défini ci-dessous) au nom du Constituant dans les livres de l'établissement de crédits (dès sa nomination) situé en France qui aura été désigné par le Constituant et qui acceptera la fonction de teneur de compte, réputé faire partie intégrante du Compte de Titres Financiers à la date de signature de la présente déclaration de nantissement, conformément aux dispositions de l'article L. 211-20 du Code monétaire et financier,

Sur lequel seront inscrits les fruits et produits des Titres.

Bon pour constitution de nantissement aux conditions figurant dans la convention de nantissement de compte de titres financiers en date du 10 décembre 2024 (la "**Convention de Nantissement**").

Le 10 décembre 2024, en deux (2) exemplaires originaux.

Le Constituant :

**ALPHA FINANCIAL MARKETS CONSULTING
GROUP LIMITED**

Par: _____

L'Agent des Sûretés

GLAS TRUST CORPORATION LIMITED

Par: _____

SCHEDULE 2. CERTIFICATE OF PLEDGE OVER FINANCIAL SECURITIES ACCOUNT

Attestation de Nantissement de Compte-Titres

(Établie conformément à l'article L. 211-20 du Code monétaire et financier)

Il est fait référence à une convention de nantissement de compte de titres financiers et à une déclaration de nantissement de compte de titres financiers en date du 10 décembre 2024 conclues notamment Alpha Financial Markets Consulting Group Limited en qualité de Constituant (*Pledgor*) et GLAS Trust Corporation Limited en qualité de Security Agent (*Security Agent*) (la "**Convention de Nantissement de Compte-Titres**").

Les termes et expressions définis dans la Convention de Nantissement de Compte-Titres ont le sens attribué à leur équivalent en langue anglaise (indiqué en italique entre parenthèses) lorsqu'ils sont utilisés dans la présente attestation.

NOUS SOUSSIGNES :

Dénomination : ALPHA FINANCIAL MARKETS CONSULTING

Adresse ou siège social : 6 Square de l'Opéra-Louis Jouvet, 75009 Paris

Représentée par : John Paton

Agissant en qualité de Teneur du Compte-Titres (*Account Holder*).

APRÈS AVOIR PRIS CONNAISSANCE DE LA CONVENTION DE NANTISSEMENT DE COMPTE-TITRES ET DE LA DÉCLARATION DE NANTISSEMENT Y AFFÉRENTE,

- (a) attestons par la présente de l'inscription dans nos livres du nantissement du Compte Titres (*Financial Securities Account*) dont les références figurent dans la Déclaration de Nantissement (*Statement of Pledge*) en date du 10 décembre 2024,
- (b) donnons inventaire des Titres (*Financial Securities*) suivants : cent cinquante mille (150.000) actions ordinaires émises par Alpha Financial Markets Consulting,
- (c) prenons acte de l'interdiction faite au Constituant (*Pledgor*) de disposer des Titres (*Financial Securities*) inscrits au crédit du Compte-Titres (*Financial Securities Account*), et
- (d) confirmons avoir pris acte des modalités de fonctionnement du Compte-Titres (*Financial Securities Account*), conformément aux conditions prévues dans la Convention de Nantissement de Compte-Titres.

Le 10 décembre 2024, en un (1) exemplaire original

Le Teneur du Compte-Titres
Alpha Financial Markets Consulting
Par:

SCHEDULE 3. CERTIFICATE OF PLEDGE (SPECIAL BANK ACCOUNT)

Attestation de nantissement (Compte fruits et produits)

(Établie conformément à l'article L. 211-20 du Code monétaire et financier)

Il est fait référence à une convention de nantissement de compte de titres financiers et à une déclaration de nantissement de compte de titres financiers en date du 10 décembre 2024 conclues notamment Alpha Financial Markets Consulting Group Limited en qualité de Constituant (Pledgor) et GLAS Trust Corporation Limited en qualité de Security Agent (*Security Agent*) (la "**Convention de Nantissement de Compte-Titres**").

Les termes et expressions définis dans la Convention de Nantissement de Compte-Titres ont le sens attribué à leur équivalent en langue anglaise (indiqué en italique entre parenthèses) lorsqu'ils sont utilisés dans la présente attestation.

NOUS SOUSSIGNES :

Dénomination : [●]

Forme : Société anonyme

Adresse ou siège social : [●]

Numéro d'immatriculation : [●] RCS [●]

Représentée par : _____

Agissant en qualité de Teneur du Compte Fruits et Produits (*Special Bank Account Holder*).

APRÈS AVOIR PRIS CONNAISSANCE DE LA CONVENTION DE NANTISSEMENT DE COMPTE-TITRES ET DE LA DÉCLARATION DE NANTISSEMENT Y AFFÉRENTE,

- (a) confirmons l'ouverture dans nos livres du Compte Fruits et Produits (*Special Bank Account*) dont les références figurent dans la Déclaration de Nantissement (*Statement of Pledge*) et qu'en application des dispositions de l'article L. 211-20 III du Code monétaire et financier, le Compte Fruits et Produits (*Special Bank Account*) est réputé faire partie intégrante du Compte Nanti (tel que défini sous le terme "*Pledged Account*" dans la Convention de Nantissement de Compte-Titres),
- (b) confirmons avoir été informés par écrit et pris acte des modalités de fonctionnement du Compte Fruits et Produits (*Special Bank Account*), conformément aux conditions prévues dans la Convention de Nantissement de Compte-Titres.

Le [●], en un (1) exemplaire original

Le Teneur du Compte Fruits et Produits

[●]

Par: _____

SCHEDULE 4. FORM OF NOTICE OF THE OCCURRENCE OF A DECLARED DEFAULT TO THE SPECIAL BANK ACCOUNT HOLDER

Modèle de Notification de la Survenance d'un Cas de Défaut Déclaré au Teneur du Compte Fruits et Produits

A : [●], agissant en qualité de Teneur du Compte Fruits et Produits

- Déclaration de nantissement de compte de titres financiers en date du 10 décembre 2024 (la "**Déclaration de Nantissement**").
- Compte fruits et produits n° [●] (code banque : [●], code guichet : [●], clé : [●] ouvert dans vos livres) (le "**Compte Fruits et Produits**")

Madame, Monsieur,

- (a) Nous nous référons à une convention de nantissement de compte de titres financiers à une déclaration de nantissement de compte de titres financiers en date du 10 décembre 2024 conclues notamment Alpha Financial Markets Consulting Group Limited en qualité de Constituant (*Pledgor*) et GLAS Trust Corporation Limited en qualité de Security Agent (*Security Agent*) (la "**Convention de Nantissement de Compte-Titres**").
- (b) Conformément à l'article (b) de la Convention de Nantissement de Compte-Titres, nous vous notifions la survenance d'un cas de défaut déclaré (*Declared Default*) au titre des Obligations Garanties (*Secured Obligations*) en vertu de la Convention de Nantissement de Compte-Titres.
- (c) A compter de la date de réception du présent avis, conformément à l'article (b) de la Convention de Nantissement de Compte-Titres, le Constituant n'est donc plus autorisé à effectuer de débit sur le Compte Fruits et Produits mentionné ci-dessus et toute somme figurant au crédit de ce Compte Fruits et Produits doit être bloquée jusqu'à notification contraire de notre part.

Le [●].

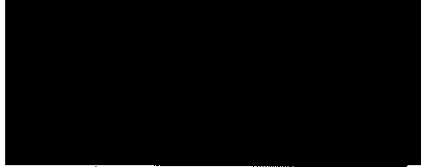
GLAS TRUST CORPORATION LIMITED

Par :

Par :

SIGNATURE PAGES (1/2)

The Pledgor
**ALPHA FINANCIAL MARKETS CONSULTING
GROUP LIMITED**



By: JOHN C. PARDON, DIRECTOR

SIGNATURE PAGES (2/2)

The Security Agent
GLAS Trust Corporation Limited



By: *BENJAMIN MERRICK*

By: